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Dr. Hotz on August 22, 2004, and for making harassing phone calls. On this occasion, both the doctor and respondent testified. Petitioner challenged the sufficiency of this second indictment, claiming that he was “‘nowhere near Dr. Hotz’” on the date in question and that “[t]here was no evidence whatsoever that [he] committed an assault on anybody.” 611 F. 3d 828, 836 (CA11 2010). Again, the indictment was dismissed.

While the second indictment was still pending, respondent appeared before a grand jury for a third time, and yet another indictment was returned. Petitioner was charged with assault and making harassing phone calls. This final indictment was ultimately dismissed as well.

Petitioner then brought this action against respondent under Rev. Stat. § 1979, 42 U.S.C. § 1983. Petitioner alleged that respondent conspired to present and did present false testimony to the grand jury. Respondent moved to dismiss, arguing, among other things, that he was entitled to absolute immunity for his grand jury testimony. The United States District Court for the Middle District of Georgia denied respondent’s motion to dismiss, but the Court of Appeals reversed, holding, in accordance with Circuit precedent, that respondent was absolutely immune from a § 1983 claim based on his grand jury testimony.

The Court of Appeals noted petitioner’s allegation that respondent was the sole “complaining witness” before the grand jury, but the Court of Appeals declined to recognize a “complaining witness” exception to its precedent on grand jury witness immunity. See 611 F. 3d, at 839–840. “[A]llowing civil suits for false grand jury testimony,” the court reasoned, “would . . . emasculate the confidential nature of grand jury testimony, and eviscerate the traditional absolute immunity for witness testimony in judicial proceedings.” *Id.*, at 840. The court went on to hold that respondent was entitled to absolute immunity, not only with respect to claims based directly on his grand jury testimony, but also with

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respect to the claim that he conspired to present such testimony. *Id.*, at 841. To allow liability to be predicated on the alleged conspiracy, the court concluded, “‘would be to permit through the back door what is prohibited through the front.’” *Ibid.* (quoting *Jones v. Cannon*, 174 F. 3d 1271, 1289 (CA11 1999)).

We granted certiorari to resolve a Circuit conflict regarding the immunity of a “complaining witness” in a grand jury proceeding, 562 U. S. 1286 (2011), and we now affirm.

II

Section 1983, which derives from § 1 of the Civil Rights Act of 1871, 17 Stat. 13, creates a private right of action to vindicate violations of “rights, privileges, or immunities secured by the Constitution and laws” of the United States. Under the terms of the statute, “[e]very person’ who acts under color of state law to deprive another of a constitutional right [is] answerable to that person in a suit for damages.” *Imbler v. Pachtman*, 424 U. S. 409, 417 (1976) (citing 42 U. S. C. § 1983).

A

Despite the broad terms of § 1983, this Court has long recognized that the statute was not meant to effect a radical departure from ordinary tort law and the common-law immunities applicable in tort suits. See, e. g., *Burns v. Reed*, 500 U. S. 478, 484 (1991). More than 60 years ago, in *Tenney v. Brandhove*, 341 U. S. 367 (1951), the Court held that § 1983 did not abrogate the long-established absolute immunity enjoyed by legislators for actions taken within the legitimate sphere of legislative authority. Immunities “well grounded in history and reason,” the Court wrote, were not somehow eliminated “by covert inclusion in the general language” of § 1983. *Id.*, at 376.

This interpretation has been reaffirmed by the Court time and again and is now an entrenched feature of our § 1983 jurisprudence. See, e. g., *Pierson v. Ray*, 386 U. S. 547, 554–

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555 (1967) (“The legislative record gives no clear indication that Congress meant to abolish wholesale all common-law immunities. Accordingly, this Court held . . . that the immunity of legislators for acts within the legislative role was not abolished. The immunity of judges for acts within the judicial role is equally well established, and we presume that Congress would have specifically so provided had it wished to abolish the doctrine”); *Imbler, supra*, at 418 (statute must “be read in harmony with general principles of tort immunities and defenses rather than in derogation of them”); *Procunier v. Navarette*, 434 U. S. 555, 561 (1978) (“Although the Court has recognized that in enacting § 1983 Congress must have intended to expose state officials to damages liability in some circumstances, the section has been consistently construed as not intending wholesale revocation of the common-law immunity afforded government officials”); *Briscoe v. LaHue*, 460 U. S. 325, 330 (1983) (“‘It is by now well settled that the tort liability created by § 1983 cannot be understood in a historical vacuum. . . . One important assumption underlying the Court’s decisions in this area is that members of the 42d Congress were familiar with common-law principles, including defenses previously recognized in ordinary tort litigation, and that they likely intended these common-law principles to obtain, absent specific provisions to the contrary’” (quoting *Newport v. Fact Concerts, Inc.*, 453 U. S. 247, 258 (1981))); *Pulliam v. Allen*, 466 U. S. 522, 529 (1984) (“The starting point in our own analysis is the common law. Our cases have proceeded on the assumption that common-law principles of . . . immunity were incorporated into our judicial system and that they should not be abrogated absent clear legislative intent to do so”).

B

Recognizing that “Congress intended [§ 1983] to be construed in the light of common-law principles,” the Court has looked to the common law for guidance in determining the